

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD, *Respondent and Third-Party Complainant*

v.

SAMSUNG ELECTRONICS COMPANY, LTD.; SAMSUNG SDS
GLOBAL SCL ASIA PACIFIC PTE LTD.; AND SAMSUNG
ELECTRONICS LOGITECH COMPANY, LIMITED,
Third-Party Respondents.

DOCKET NO. 24-16

Served: July 8, 2025

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge.*

ORDER GRANTING JOINT MOTION TO MODIFY SCHEDULE

On June 26, 2025, the parties jointly moved to enlarge the discovery schedule “by one (1) month for the limited purpose of pursuing an in-person mediation through the [FMC’s] Consumer Affairs and Dispute Resolution Services Office (“CADRS”) the week of July 14, 2025.” Third Joint Motion for Enlargement of Time at 1. While mediation typically does not stay a proceeding, the parties have proposed a 30-day modification to the schedule, enlarging the dates by which discovery milestones will be reached. The parties state that they will submit and exchange mediation statements, and have identified either July 17 or 18, 2025 for a full-day mediation session. Because the request is for a short period of time, and the parties represent that the mediation may help them settle this matter, or at least narrow the issues, the modification is reasonable.

Good cause having been found the motion is **GRANTED**. The schedule is modified as follows:

August 14, 2025	Document Production Completed, Fact Depositions Begin
August 21, 2025	Joint Status Report
September 25, 2025	Complete Fact Depositions

September 25, 2025

Expert Discovery Begins

October 29, 2025

Discovery Completed

Both Complainant and Respondent/Third-Party Complainant request an oral hearing. Amended Complaint ¶ 111; Answer and Counterclaim ¶ 111; Third-Party Complaint ¶ 72. The date for a prehearing conference in this matter will be set after the outstanding motions are decided and is preliminary to determining whether an oral hearing is necessary in this proceeding. To facilitate scheduling a prehearing conference, counsel must identify in the next joint status report dates through the end of 2025 on which they will not be available due to known conflicts; only counsel designated as trial counsel need provide their availability. The narrowing of issues and use of stipulations in advance of the prehearing conference could significantly reduce the number of days necessary to complete a potential hearing and are strongly encouraged. Prior to the prehearing conference, the parties will be required to meet for the purpose of discussing the topics set forth in 46 C.F.R. § 502.210(b), to prepare a Joint Prehearing Statement, and to exchange exhibits. Prehearing motions, including motions *in limine* and motions for confidential treatment, as well as the Joint Prehearing Statement and objections to exhibits, will be due prior to the prehearing conference, which will be held at 800 North Capitol Street, NW, Washington, DC. Dates for the required meeting and submission of motions and the Joint Prehearing Statement will be set in the next scheduling order. After review of the prehearing statement or after the prehearing conference, if there are no issues that would make a hearing necessary, a briefing schedule will be set. Otherwise, a hearing date will be set at the prehearing conference.

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

Any filing submitted without page numbers, including on exhibits, may be rejected. Parties must also follow the instructions in the Initial Order, including the requirements for submitting confidential information. All filings “must be filed with the Secretary, Federal Maritime Commission.” 46 CFR 502.2(a). This filing requirement applies to both the confidential and public versions of filings. The Commission has waived paper filing requirements and permitted filings by email. Therefore, filings of confidential versions of

documents, as well as the public version, should be sent by email to secretary@fmc.gov with a courtesy copy to judges@fmc.gov. Confidential filings should be clearly marked on the subject line, in the email, and on the document itself. Parties may be required to refile any documents that do not follow the requirements above or in the Initial Order.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word-processing versions should not be submitted to the Office of the Secretary.



Linda S. Harris Crovella
Administrative Law Judge